

GRIFFIN FLOOR AMENDMENT #1
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2150
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Repeal

3 Section 41-3026.05, Arizona Revised Statutes, is repealed.

4 Sec. 2. Title 41, chapter 27, article 2, Arizona Revised Statutes,
5 is amended by adding section 41-3030.19, to read:

6 41-3030.19. State land department; termination July 1, 2030

7 A. THE STATE LAND DEPARTMENT TERMINATES ON JULY 1, 2030.

8 B. TITLE 37, CHAPTERS 1 AND 2 AND THIS SECTION ARE REPEALED ON
9 JANUARY 1, 2031.

10 Sec. 3. Purpose

11 Pursuant to section 41-2955, subsection B, Arizona Revised Statutes,
12 the legislature continues the state land department to have charge of and
13 control over all lands owned by this state, except lands under the
14 specific use and control of state institutions, and the resources in and
15 on those lands and to regulate the use of and access to those lands and
16 resources as prescribed by the enabling act, the Constitution of Arizona
17 and state law and to perform such other functions as prescribed by law.

18 <<Sec. 4. State land department; auditor general report;
19 recommendations; implementation; checklist;
20 notification; delayed repeal

21 [a. Within two years after the effective date of this section, the
22 state land commissioner shall implement all fifty-one recommendations in
23 the auditor general's July 2025 performance audit and sunset review of the
24 state land department.

25 B. Until the state land commissioner implements all of the auditor
26 general's recommendations, the state land commissioner shall meet with the
27 auditor general quarterly and report on the progress of the state land
28 department's implementation of the recommendations.

29 C. The auditor general shall maintain a checklist of the
30 recommendations and shall update the checklist after each meeting

1 consistent with the completion of any of the recommendations to the
2 satisfaction of the auditor general.

3 D. The auditor general may enter any premises, conduct any
4 investigation or inspect any documents in possession of the state land
5 department to ensure the state land department implements the
6 recommendations to the auditor general's satisfaction.

7 E. Each fiscal quarter, the auditor general shall provide an update
8 of the current status of the recommendation checklist to the following:

9 1. Each member of the joint legislative audit committee.

10 2. The governor.

11 3. The chairperson of the committee of reference that the president
12 of the senate tasks with oversight of the state land department.

13 4. The chairperson of the committee of reference that the speaker
14 of the house of representatives tasks with oversight of the state land
15 department.

16 F. If the state land department fails to implement the auditor
17 general's recommendations within two years after the effective date of
18 this section, the auditor general shall:

19 1. Notify the following:

20 (a) each member of the joint legislative audit committee.

21 (b) the governor.

22 (c) the chairperson of the committee of reference that the
23 president of the senate tasks with oversight of the state land department.

24 (d) the chairperson of the committee of reference that the speaker
25 of the house of representatives tasks with oversight of the state land
26 department.

27 2. Request a special meeting of the joint legislative audit
28 committee to evaluate potential remedies and future action.

29 G. This section is repealed from and after December 31, 2028.]]>>

30 <<Sec. 5. Legislative findings

31 [The legislature finds that this act is necessary to ensure the best
32 interest of the state land trust, state land trust beneficiaries and this
33 state.]]>>

34 Sec. 6. Retroactivity

35 Sections 1 and 2 of this act apply retroactively to from and after
36 July 1, 2026.

37 Enroll and engross to conform

38 Amend title to conform

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